countries. For instance, between 1964 and 2008, 461,000 Tamils from Sri Lanka were given citizenship.

Experts dealing with refugees and migration claim that instead of CAA, what the country needs is a comprehensive policy to handle refugees. Though India is home to 46,000 refugees and asylum-seekers—according to 2022 UNHCR estimates—it is among the few nations that do not have a national refugee protection policy and framework. It is also not a signatory to the 1951 UN Refugee Convention, or its 1967 protocol. What complicates matters is there is no specific law or mechanism to distinguish an illegal immigrant from a refugee.

Over the years, diverse groups of refugees have made different parts of the country their settlement zones. Hindu and Sikh migrants in Delhi, Rajasthan and Jammu and Kashmir after Partition; Bangladeshis, perhaps the largest immigrant group from a particular country, in West Bengal and Assam; Buddhist Chakmas and Hindu Hajongs from Bangladesh concentrating in Arunachal Pradesh; Tamil Nadu hosting Sri Lankan Tamil refugees; Buddhist Tibetan settlements in Dharamshala and many other places—India has welcomed them all.

The home ministry has now created 'standard operating procedures' for various refugee groups. But the rights and facilities accorded to them remain erratic, decided on a case-by-case basis. Refugees from some groups, such as the Tibetans, have been given land, granted Aadhaar and PAN, been allowed to open bank accounts, and work in the country. Other groups, such as the Rohingyas from Myanmar—who are often portrayed as a security threat to the country—remain huddled in miserable camps, relying on the charity of the UNHCR. While the security of the country is non-negotiable, it's in the national interest that a legal closure is brought to the issue of immigrants and refugees, considering India's porous borders. ■

with Arkamoy Datta Majumdar

WHAT ARE THE RULES OF CAA?

Under CAA or the Citizenship (Amendment) Act, 2019, Hindu, Sikh, Jain, Buddhist, Christian and Parsi immigrants from Afghanistan, Bangladesh and Pakistan who entered India legally/ illegally before December 31, 2014, and have been in the country for five years, can apply for citizenship. Here are the rules and how to apply:

- Apply online on the web portal, https://indiancitizenshiponline.nic.in. Application to be sent to the Central Empowered Committee through the district committee, which will verify the documents
- An affidavit to prove application's veracity along with one from an Indian citizen testifying to the applicant's character
- A declaration that he/she can speak or read any one of the languages specified in the Eighth Schedule
- A statement saying citizenship of home country will be renounced if his/her application is approved



Illustration by SIDDHANT JUMDE

- The aspirant has to sign an oath of allegiance to the Constitution and laws of India, and to fulfilling duties as a citizen
- Proof (from a set of documents listed) that he/she belonged to one of the three countries and entered India before Dec. 31, '14
- Once the Empowered Committee approves application, the applicant will be issued a digital certificate of registration

TO PROVE COUNTRY OF ORIGIN...

Applicant must submit any of the following documents issued by the government or specified authorities of origin countries:

- Passport copy
- Registration certificate/resident permit issued by the Foreigners Regional Registration Officer (FRRO) or Foreigners Registration Officer (FRO) in India*
- Birth certificate, school certificate/educational certificate
- ID of any kind, any licence or certificate, land or tenancy records
- Any document that shows parents/grandparents/great grandparents is/had been a citizen of one of the three countries

TO PROVE ARRIVAL DATE...

The candidate must have entered India before Dec. 31, 2014. As proof, he/she must submit any of the following:

- Copy of visa stamp on arrival in India
- Registration certificate/residence permit from FRRO or FRO in India
- Slip issued by census enumerators
- Govt-issued licence/ certificate/permit such as Aadhaar, ration card
- Letter issued by the government/court with official stamp
- Birth certificate issued in India, land/ tenancy records or registered rental agreement, PAN card
- Document issued by central/state government/PSU/bank or any other public authority
- Certificate by an elected member of rural/urban body
- Insurance policy, utility bills in applicant's name, court/tribunal records in India with name mentioned, document showing service/ mployment alongside EPF/pension papers
- School/college certificate or marriage certificate issued in India

*This document is issued by Indian authorities